



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

May 1, 2024

POLICE COMMISSIONER'S PENALTY DEPARTMENTURE

Re: CCRB Case No. 202302782 (Incident Date: November 6, 2022) regarding Police Officer Marlo Alvarado, Tax No. 958237 (DADS No. 2024-29978), and Police Officer Sean Stukes, Tax No. 961571 (DADS No. 2024-29979)

Dear Mr. Darche:

The Police Commissioner has reviewed the facts and circumstances in connection with CCRB Case No. 202302782, pertaining to Police Officers Alvarado and Stukes. Having analyzed the facts and circumstances of this matter, the Police Commissioner has determined that no disciplinary action is warranted in connection with some of the substantiated allegations against said officers.

The Police Commissioner has reviewed the facts and circumstances of this matter and determined that Police Officer Alvarado and Police Officer Stukes were justified in searching complainant for safety reasons before she was brought into the ambulance as she was determined to be an Emotionally Disturbed Person. On more than one occasion the complainant gave consent to have her jacket and belongings searched in order for the officers to find her identification card.

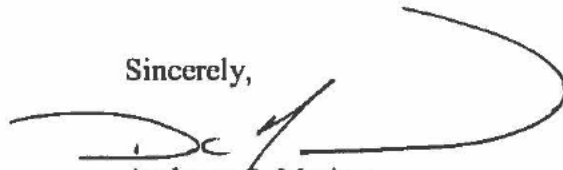
Therefore, the Police Commissioner directs that Police Officer Alvarado and Police Officer Stukes will receive no disciplinary action for the search allegations. Furthermore, Police Officer

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Alvarado and Police Officer Stukes will each be issued a Schedule "A" Command Discipline for the allegations that they failed to provide business cards.

Sincerely,

A handwritten signature in black ink, appearing to read 'A. Marino', with a large, sweeping loop extending to the right.

Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office